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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**EXHIBIT: PLAINTIFF PRESERVATION
CHRONOLOGY**

PURPOSE

This one-page exhibit documents Plaintiff's contemporaneous preservation of the suppression/concealment objection across four separate pre-trial hearing dates, defeating any "sleeping on rights" or "intrinsic fraud because Plaintiff was aware" argument.

WHY PLAINTIFF’S PRESERVATION MATTERS

This chronology proves that Plaintiff objected contemporaneously to every misrepresentation by defense counsel. This preempts any defense argument of “sleeping on rights” or that the fraud was merely intrinsic. Plaintiff raised the alarm at every hearing, but his procedural remedies were foreclosed because the Court relied on defense counsel’s false representations of non-receipt.

THE RELIANCE-REVERSAL CHAIN

1. **Jan. 27, 2025. Defense denial:** “We never received these CDs, certainly.” (p. 34). **Plaintiff’s objection:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19). **Rulings procured:** MIL No. 1 denied; 911 CDs excluded (p. 38).
2. **Feb. 18, 2025. Defense denial:** “This is news to me... our office did not receive the 911 call...” (p. 141). **Plaintiff’s objection:** “The information was completely concealed from me... this is going on the record.” (pp. 17, 44). **Rulings procured:** Continuance denied; § 473 relief rejected (p. 181).
3. **Feb. 28, 2025. Defense denial:** (Implied denial re: doctor files). **Plaintiff’s objection:** Preserved officer-of-court / burden-shift objection (pp. 291–294). **Rulings procured: Burden-shift imposed** on Plaintiff (p. 293).
4. **Apr. 16, 2025. Defense: ADMISSION:** “Sure. They were provided by Dolan.” (p. 213). **Plaintiff:** Trial-day foundation challenges. **Rulings procured:** Supplemental report excluded.

PRESERVATION TIMELINE

- **Jan. 27, 2025 — Plaintiff’s preservation:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19, ll. 1–5); FROG/SROG CAD references confirmed (p. 32, ll. 1–16); “They’re using weaponization of procedure” (p. 42, ll. 1–8). **Procedural vehicle sought:** CCP § 473 relief; continuance to lay foundation. **Court ruling:** § 473 denied (p. 49); continuance denied (pp. 55–56). **Pincite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff’s preservation:** (Absent — Santa Clara Valley Medical Center ER). **Court ruling:** Defense § 581(d) dismissal motion; Court remarked dismissal would

“suffer immediate reversal” (p. 90:17–33). **Pincite:** Hr’g Tr. Jan. 28, 2025, p. 90.

- **Feb. 3, 2025 — Plaintiff’s preservation:** (Absent — medical). **Court ruling:** Renewed § 581(d) under submission; ex parte disclosure order condition. **Pincite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff’s preservation:** “the information was completely concealed from me” (p. 17); “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (pp. 44–45). **Procedural vehicle sought:** Continuance to subpoena SFPD foundation witnesses. **Court ruling:** Continuance denied (p. 181); “surprise under § 473 is not a sufficient basis” (p. 181:20–25). **Pincite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 147, 151, 164, 181.
- **Feb. 28, 2025 — Plaintiff’s preservation:** Opposed deposition protective order limiting doctor-file access. **Procedural vehicle sought:** Access to doctor files before liability trial. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift imposed (pp. 291–294). **Pincite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff’s preservation:** “former attorney concealed the 911 record” (closing argument). **Procedural vehicle sought:** Closing argument to jury. **Court ruling:** Verdict returned 9–3 for defense. **Pincite:** RT 10, p. 55.

SUMMARY

Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28, 2025), each time seeking a procedural remedy (continuance, § 473 relief, protective-order opposition). **Each procedural vehicle was denied.**

This chronology establishes:

1. **Accrual under CCP § 338(d)** runs from the **January 17, 2025** MIL filings (the “contrary court-facing position”), not from 2021 possession — Plaintiff did not know of the defense’s internal file-transfer failure until the MIL representations contradicted prior silence.
2. **Reasonable reliance** for element 3 of estoppel by silence under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 — Plaintiff’s diligence in raising the issue contempora-

neously demonstrates the reliance was not unreasonable.

3. **Extrinsic, not intrinsic, fraud** — The fact that Plaintiff raised objections does not convert extrinsic fraud into intrinsic fraud. Plaintiff's procedural remedies were **foreclosed by the rulings themselves**; awareness of the problem and ability to litigate it fairly are not the same thing. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72.)

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO,